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CHALLENGES OF LEGISLATING IN PARTISAN TIMES

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Over the past half-century, Congress's legislative performance has varied considerably—sometimes securing major policy achievements, other times stalemating on pressing public problems. In this chapter, I review competing perspectives on the dynamics of lawmaking and present evidence from recent decades to help us assess Congress's contemporary legislative performance. Although political and institutional forces can still grease the skids for major policy deals, the frequency of legislative stalemate is on the rise. Whether, how, or when Congress will recoup its legislative capacity remains in question.

The past quarter-century has been a roller-coaster ride for the U.S. Congress—and for all who look to elected officials in Washington to tackle and solve the nation's most pressing public problems. Over that period, Congress and the president have engineered some remarkable policy achievements—increasing access to affordable health insurance, revamping federal tax rates, tackling global warming, and responding to a global financial crisis and devastating pandemic, among other agreements. Lawmakers' failures, however, have also stacked up: inaction on tackling the national debt, the inability to put entitlement programs on stable financial footing, failure to reform immigration laws, gun regulations, and the rising cost of higher education, among other issues. A stark pattern emerges if we widen our lens to capture Congress's longer legislative history back to the 1940s: Despite Congress's periodic successes, the frequency of legislative stalemate is on the rise.

Why does Congress's performance vary so widely over time? And how do we know that legislative deadlock has become more common? In this chapter, I survey competing views about the dynamics of lawmaking and offer a systematic measure of Congress's legislative record over time. Relying on a metric of legislative deadlock that stretches back to the 1940s, I probe patterns in Congress's performance—combining quantitative evidence with a more detailed look at the challenges of legislating during recent presidencies. My goal is to explain the incidence of legislative deadlock, as well as the conditions that continue to make deals possible—even in an intensely partisan period with notably fractured parties.

THEORIES OF LAWMAKING

The origin of political science as a discipline is deeply rooted in the exploration of American national institutions—legal structures, institutional details, and broader performance within the American political system. In fact, attention to Congress’s law-making would not have been considered unusual to any of the discipline’s first political scientists. The earliest such studies sought to bring tools of social science to bear on questions of politics and policy making. Those scholars naturally turned to analyses of the separation of powers, asking whether congressional, presidential, and administrative bodies were sufficiently accountable to the broader needs of the country. Indeed, a political scientist (and future U.S. president), Woodrow Wilson, wrote the quintessential such study in *Congressional Government*, arguing that Congress’s committees thwarted the interests of the majority party and the president, undermining Congress’s public accountability.¹

The behavioral revolution in political science by the mid-twentieth century eclipsed the discipline’s early focus on the study of laws and institutions. Drawing from the fields of psychology and sociology, political scientists came to consider individuals, their roles, and their behavior key building blocks in the study of politics. As Kenneth Shepsle in 1989 reviewed the turn in scholarship, political scientists treated institutions as “empty shells to be filled by individual roles, statuses and values. . . . There was no need to study institutions; they were epiphenomenal.”² That said, many legislative scholars on the heels of the behavioral revolution still focused on the origins and evolution of institutions. Scholarship by Nelson Polsby on the evolution of the U.S. House and Joseph Cooper on the origins of congressional standing committees are key examples.³

With the turn by political scientists in the 1970s to draw from economics to explain political phenomena, more legislative scholars returned to the study of institutions. Instead of seeing institutions as unimportant, scholars now considered that legislative behavior and outcomes could reflect actors’ policy preferences and the rules of the legislative game. Legislative scholars soon applied economics-based models to a wide set of applications within the study of Congress, including the organization of its committees, bargaining and coalition-building, and relations with the executive.⁴ The emergence of this new mode of legislative research offered bedrock contributions to our understanding of legislative strategy and choice.

Still, analysis remained centered on the microlevel—fine-tuning theory to explain how rationally motivated individuals pursued their goals within legislative institutions. In that vein, macro politics received little attention in this blossoming field. Consider the difference between *micro politics* (emphasizing the individual as the core analytical unit) and *macro politics* (focusing on outputs, such as policy outcomes, law-making, and Congress’s broader performance). To be sure, legislative scholars never completely turned a blind eye to the study of congressional performance: Decades ago, scholars including Lawrence Chamberlain and James Sundquist evaluated patterns

in legislative outputs, with an eye to both the impact of divided party government (Sundquist) and the relative balance of power between Congress and the president (Chamberlain).⁵ Still, there was little attention to the development of macrolevel theory during this period. We gained detailed analyses of legislative performance in different eras, but we were left with little in the way of generalizable explanation. Nor did other scholars take up these works to test their implications in other periods or contexts. Microlevel analyses dominated legislative studies.

Publication of David Mayhew's *Divided We Govern* in 1991 demarks the contemporary study of congressional–presidential relations and their impact on Congress's legislative performance.⁶ Probing the impact of political parties on Capitol Hill, Mayhew developed systematic evidence to test claims about the relevance of divided party government on lawmaking. *Divided We Govern* followed decades of works by presidential and legislative scholars perplexed and frustrated by periods of divided party government that prevailed after World War II. Between 1897 and 1954, divided party control of government occurred 14 percent of the time; between 1955 and 1990, two-thirds of the time. As prominent political scientist V. O. Key in the 1960s summed up the state of our knowledge of the impact of party, “Common partisan control of executive and legislature does not assure energetic government, but division of party control precludes it.”⁷ Decades later, scholars continued to call for a new theory of coalitional government to explain how Congress and the president could secure major policy change in the presence of divided government.⁸

In *Divided We Govern*, Mayhew asked a simple question about Congress's performance in the postwar era: “Were many important laws passed?”⁹ Mayhew sought to test for the effect of divided party control on the level of lawmaking. He identified landmark laws in a two-stage process that combined contemporary judgments about the significance of Congress's work with policy specialists' retrospective judgments about the importance of legislation. Mayhew then generated a comprehensive list of landmark laws enacted in each Congress between 1946 and 1990, subsequently updated online through 2022.¹⁰ Mayhew then tested whether the presence of divided government reduced the number of landmark laws enacted each Congress.

Mayhew concluded that unified party control produces no more major lawmaking than divided government. Having absolved divided government as a key cause of slowing down the production of legislation, Mayhew explored other influences that might shape congressional performance. Some of those forces—including legislators' electoral incentives—pointed toward constancy in the record of lawmaking. In other words, the ever-present incentive to secure reelection could limit variation in Congress's legislative performance over time. But Mayhew also pointed to sources of variation that could explain changes over time in congressional lawmaking. Most importantly, Mayhew argued that broad shifts in the public mood (such as the rise and fall of a taste for activist government), presidents' electoral cycles, and issue coalitions that cut across the left–right divide could help us to explain the ups and downs in Congress's lawmaking over the postwar era.

Mayhew's counterintuitive finding spawned a healthy debate about the forces that shape the legislative record of Congress and the president. Keith Krehbiel offered a prominent theoretical response to Mayhew's work, introducing a new theoretical framework for conceptualizing the conditions that foster lawmaking by the two branches.¹¹ Krehbiel's key contribution was conceptualizing the legislative process as a "pivotal politics" game: Constitutional and extraconstitutional institutional rules create "pivotal" players (who hold specific parliamentary rights) on whom collective choice depends.

In the congressional context, the collective choice at stake is the formulation of public law. Krehbiel argued that the lawmakers whose preferences make them the pivotal votes in sustaining or blocking a Senate filibuster or overriding or sustaining a presidential veto drove the likelihood of major policy change. Any policy located between these pivots (the "gridlock interval") cannot be changed (if legislative politics falls along a single dimension and lawmakers' votes and presidential positions reflect sincere policy preferences). In other words, legislative stalemate can occur even in the presence of a president and a congressional majority that favors policy change.

The pivotal politics theory has important implications for understanding the conditions under which Congress and the president agree on major policy change. Most importantly, the theory suggests that policy outcomes must be consistent with the views of the supermajority pivots of the legislature. For example, with a conservative president and bicameral congressional majority, efforts to move policy substantially to the right would be blocked by a liberal filibuster pivot. Senate Democrats in 2005, for instance, blocked Republican president George W. Bush's push to privatize Social Security. Threatening to filibuster, Democrats prevented the proposal from moving forward—even though Republicans controlled both chambers and the White House. Under the theory, major policy change is likely only when elections alter the alignment of pivotal players or major exogenous shocks make existing policy—or doing nothing—untenable. Crises—such as the terrorist attacks of September 11, 2001, or the global pandemic that began in 2020—are prime examples. Despite split party control of Congress in the fall of 2001, President Bush succeeded in securing bipartisan support for most of the legislative measures he sought in retaliation against the perpetrators of 9/11. Similarly, split party control of Congress did not stymie legislative efforts to combat COVID-19 in the winter and spring of 2020: Democrats secured many of their top priorities in negotiations with the GOP White House.¹²

One of the model's nice features is that it helps to explain why unified party control often fails to produce major policy change. Failure to secure the support of the filibuster pivot has hamstrung many a majority party, including Democrats under President Joe Biden in 2022 when they failed to secure the necessary supermajority support to overhaul voting rights law. *Pivotal Politics* also helps to explain the challenges faced by President Obama's Democratic majority in 2010 after the loss of its filibuster-proof Senate majority. Once a Republican moved into the spot of the "filibuster pivot,"

Democrats had to scale back their legislative ambitions—including their reform of the financial regulatory system in the wake of the worst financial crisis since the Great Depression.

The model also suggests that legislative gridlock will occur in periods of divided government, for instance with a Republican-controlled Congress and a Democrat in the White House. In this scenario, a conservative congressional majority's effort to move policy to the right would be thwarted by a left-side filibuster pivot, as well as a left-side presidential veto pivot. The veto pivot, whose vote would be necessary to override the president's veto, is also unlikely to prefer the conservative majority's proposed policies. For example, bipartisan Congressional efforts during the Trump administration to invoke the War Powers Resolution to counter President Trump's use of force abroad in Yemen and against Iran faltered in the face of Trump's vetoes, which proponents failed to override.¹³

In the quarter-century since publication of *Pivotal Politics*, other legislative scholars have challenged Mayhew and Krehbiel's nonpartisan accounts by building theories that expect party influence over the shape of policy outcomes. In my own work, I suggest that both interbranch and intrabran­ch conflict—conditioned by partisan and institutional forces—shape the prospects for major legislative change.¹⁴ First, I show that the degree of partisan polarization matters: Ideologically distant, cohesive parties make harder both the crafting of large bipartisan majorities and the harnessing of public support necessary for durable policy change. Second, I suggest that intrabran­ch conflict is a subtle barrier to legislative action, showing that bicameral differences—even within a majority party—limit Congress's legislative capacity. Other scholars, such as Frances Lee, suggest that electoral competition can depress serious lawmaking: Opposition parties have few incentives to negotiate agreements if they believe they will recapture control of both branches at the next election.¹⁵ Messaging rather than legislating becomes the order of the day. Taken together, such accounts suggest that electoral, partisan, and institutional forces collectively shape the prospects for legislating in polarized times. More often than not when bipartisan agreement is out of reach, the parties opt to campaign on issues rather than take credit for new laws. Indeed, the prospects of being blamed by the public for failing to act seems necessary today to motivate congressional bipartisanship.

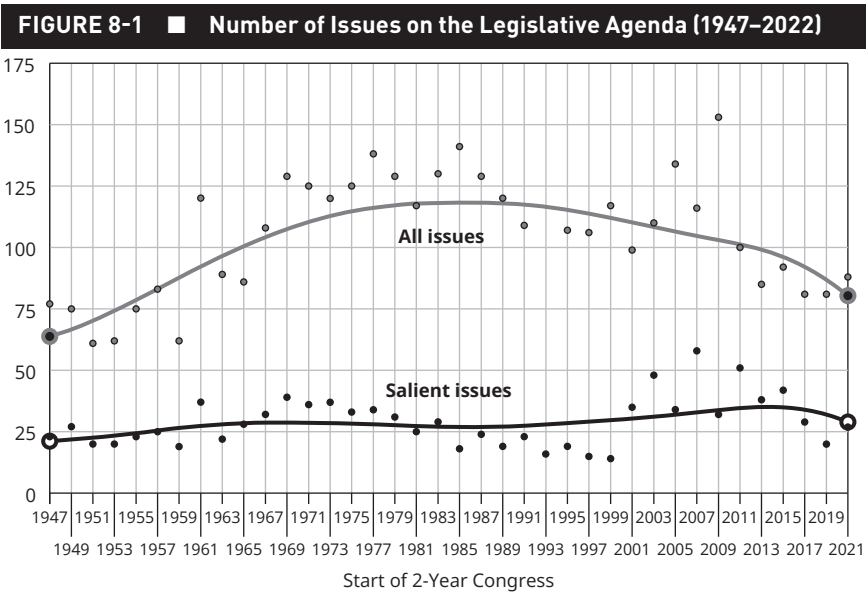
PATTERNS IN POSTWAR LAWMAKING

To measure legislative deadlock, I isolate salient issues on the nation's agenda and then determine the legislative fate of each issue in each Congress.¹⁶ The result is a ratio of failed measures to all issues on the agenda for each Congress. The measure captures well past episodes of Congress's legislative performance. Lyndon Johnson's Great Society Congress is the most productive of the postwar period; the 2013–2014 Obama

Congress (in which Republicans drove the government to shut down and to nearly default on its debt), the most deadlocked. Such assessments comport with historical and contemporary coverage of Congress and the president’s postwar performance.

In *Stalemate*, I identify every policy issue on the legislative agenda based on the issues discussed in the unsigned editorials in the *New York Times*. Using the level of *Times* attention to an issue in any given Congress as an indicator of issue salience, I locate for each Congress between the 80th (1947–1948) and the 117th (2021–2022) the most salient issues on the legislative agenda.¹⁷ I then turn to news coverage and congressional documents to determine whether or not Congress and the president took legislative action in that Congress to address each salient issue. The measurement strategy produces a denominator of every major legislative issue raised by elite observers of Capitol Hill and a numerator that captures Congress’s record in acting on those issues. The resulting gridlock score captures the percentage of salient agenda items left in limbo at the close of each Congress. Importantly, the *Times* writes about both proposals that would move policy in liberal or conservative directions, such as stemming global warming or repealing Obamacare. The frequency of deadlock is not a proxy for only one party’s legislative priorities.

Figure 8-1 displays the size of the policy agenda through 2022.¹⁸ Looking first at the smoothed trend line in the total number of legislative issues mentioned each Congress in the *Times* editorials (“All issues”), the size of the overall agenda increases as expected with the arrival of large liberal majorities during the mid-1960s and stays at



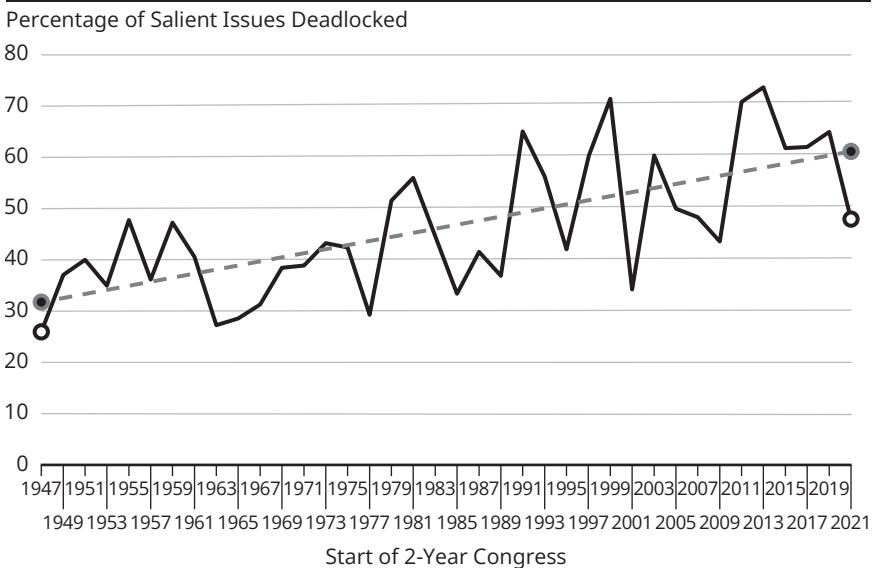
Source: Compiled by the author.

this expanded level through the advent of the civil rights, environmental, and women's movements of the 1970s. Only in later years do we see a slight increase in the size of the agenda, no doubt reflecting both later efforts to renew the spate of landmark laws of the earlier, activist period and newer issues brought to the fore by the war on terror, global climate change, and so on. Even so, the total number of legislative issues talked about in the *Times* seems to be slipping, a trend underway over the past decade or more.

In contrast, the size of the “salient” legislative agenda stays relatively constant over time—on average totaling around thirty legislative issues. The precise mix of salient issues, however, varies. To be sure, some issues repeatedly end in stalemate and reappear on the salient agenda Congress after Congress: Immigration, entitlements, and tax reform come immediately to mind. At the same time, a spate of new issues over the past decade caught the attention of the *Times*'s editorial writers, including homeland security, global warming, cybersecurity, the war on terror, financial crisis, and the global pandemic.

Five features stand out in patterns of legislative deadlock on salient issues (Figure 8-2). First, the frequency of deadlock rises steadily over time. Perceptions that Congress struggles more today than it did decades ago are right on target. Second, the direst claims about congressional performance during the Obama administration are true. Despite a remarkably productive Congress in 2009 and 2010 when Obama enjoyed a filibuster-proof, sixty-vote majority in the Senate for

FIGURE 8-2 ■ Frequency of Legislative Deadlock on Salient Issues (1947–2022)



Source: Compiled by the author.

several months, most of the Obama years are marked by record levels of deadlock. By this measure, the 113th Congress appears to be the “worst Congress ever”—at least since the series begins after the end of World War II. In fairness, the title should be shared with the 106th Congress (1999–2000) at the end of the Clinton administration and the 112th Congress (2011–2012). In all three Congresses, lawmakers and the president deadlocked on almost three-quarters of the most salient issues on the agenda. No surprise that public approval of the 113th Congress bottomed out at 7 percent when legislative stalemate closed down nonessential parts of the federal government for three weeks. Only after securing Senate control in 2014 did Senate Majority Leader Mitch McConnell (R-Ky.) vow to show voters that they could entrust Republicans with power.¹⁹ Indeed, gridlock eased in 2015 and 2016: Congress and the president addressed several salient policy issues, including major action on education, toxic chemical regulation, highway funding, and Medicare payment systems.

Third, caution is in order in comparing recent Congresses. Some of the issues considered “successfully” addressed today might not have previously been seen as legislative accomplishments. For example, Congress and the president traditionally fund federal highway programs for multiyear periods. Following expiration of highway programs in 2009, however, it took more than thirty short-term extensions of the highway program until the two parties finally agreed to a fully funded, multiyear bill late in 2015. Two-week extensions seem like obvious failed efforts to reauthorize highway spending. But what about the two-year highway bill adopted in 2012 that fell four years short of the traditional six-year bill? I consider that highway bill a success, even though the bill punted on funding highway construction after the first two years. Lawmakers did not resolve the financial impasse until late in the fall of 2015 when legislators raided the capital surplus of the Federal Reserve to replenish the highway trust fund.²⁰ Notably, even though “half-measures” are considered legislative successes in recent years, the frequency of deadlock is still on the rise.

Fourth, the legislative records of recent majorities during unified party control pale in comparison to the productivity of past unified governments. President Obama’s first Congress, from 2009–2010 (111th Congress), achieved a substantially greater share of its agenda compared to Congress’s performances over the previous decade (excepting the 9/11 Congress). The first Biden Congress, from 2021–2022 (117th), also stands out for its steady run of major legislative accomplishments. But both Congresses fall far shy of the records of unified Democratic Congresses under President Johnson’s Great Society. Granted, the 111th Congress was nearly thirty points more productive than the Obama Congresses that followed—overhauling the health care and financial regulatory systems and enacting landmark stimulus measures in the wake of the financial crisis. And the 117th Congress enacted new laws to rebuild crumbling infrastructure, bolster domestic manufacture of semiconductor chips, reduce global warming, lower the costs of some prescription drugs for Medicare recipients, and tighten federal gun laws. Still, the 111th and 117th Congresses left a hefty list of issues in limbo: reforming

education laws, managing the debt, and overhauling immigration laws to name a few. Even holding the White House and Congress, Democrats often struggled to build bipartisan coalitions for policy change.

Fifth, a brief look at the 107th Congress's performance in the wake of the attacks of September 11, 2001, is instructive. Overall, the 107th Congress (with unified Republican control of both branches for just a few months early in 2001) was markedly productive, stalemating on just a third of the policy agenda in 2001 and 2002. Lawmakers' capacity to make deals was directly shaped by the 9/11 attacks. Eight of the thirty-five salient issues on the agenda that Congress addressed stemmed directly from those attacks. And on those eight issues, Congress and the president mustered a perfect record: they enacted the Patriot Act, adopted the Authorization for the Use of Military Force, addressed the needs of 9/11 victims, and more. Even on less salient issues stemming from September 11, congressional deadlock was extraordinarily rare, with just a single issue left in legislative limbo. Still, cooperative spirit was short-lived. If we exclude the issues related to the terrorist attacks, Congress and the president deadlocked on just under half of their salient policy issues.

Congress does often act quickly in the wake of major crisis. In October 2008, a divided government bailed out Wall Street after the Federal Reserve and Treasury allowed Lehman Brothers to go under just weeks before. And over several months in 2020, a divided government enacted several measures totaling over \$3 trillion of emergency relief to combat the COVID-19 crisis. Legislative unity, however, typically dissipates when Congress turns its attention back to its normal policy agenda. Consider, for example, Trump's second Congress (2019–2020). Congress and the president met the moment during the pandemic by cobbling several historic funding packages to control the virus, bolster unemployment benefits, expand tax credits for families with children, and subsidize business payrolls, among other policies. Still, Congress and the president deadlocked on nearly two-thirds of the rest of the salient legislative agenda—failing to fund Trump's border wall along the U.S.–Mexico border, to rebuild the nation's infrastructure, and so on.

More generally, crisis is not always sufficient to spur action. Despite overwhelming majorities in favor of tougher limits on gun purchases after the mass killing of schoolchildren in Newtown, Connecticut, in 2012, Congress and the president failed to enact any changes to gun ownership laws. Measures considered in the Democratic-controlled Senate failed to surpass the sixty-vote threshold agreed to by both parties for adopting any proposal regulating guns, and a GOP-controlled House showed little interest in legislating new controls on gun ownership. Similar stalemate recurred in the wake of the Parkland, Florida, mass killing of high school students and teachers in 2018. The coincidence of several mass shootings (in Buffalo, New York, and Uvalde, Texas, within ten days of each other) during unified Democratic control of Congress in 2022 seem to have finally sparked successful negotiations to build bipartisan support for some, even if not all, of the more salient proposals to tighten gun regulations.

EXPLAINING LEGISLATIVE DEADLOCK

My first study of legislative stalemate spanned the Truman through Clinton administrations. In stark contrast to Mayhew's work, unified party control of Congress and the White House mattered: Congress stalemated on a significantly smaller amount of its salient workload when a single party controlled both branches of government. In contrast, split party control of Congress and the White House empowered parties to block policy measures they opposed, generating higher levels of stalemate during periods of divided government. Still, more mattered than just party control. First, stalemate was more frequent when Congress's political center was smaller.²¹ The emergence of polarized political parties—even before the Obama, Trump, and Biden presidencies—created partisan incentives not to go to the bargaining table and increased the challenge of securing bipartisan agreements even when partisans opted to cooperate. Second, bicameral policy differences complicated the formation of winning coalitions, even in periods of unified party control.²² Although electoral and policy differences between the branches tend to garner the most attention in Washington, bicameral policy differences also undermined lawmakers' legislative capacity. Certainly the 2010, 2012, and 2022 congressional elections—handing control of the House to Republicans while keeping the Senate and White House in Democratic hands—generated bicameral conflict that contributed to record levels of deadlock after Obama's and Biden's third and fourth years in office.

Updating my initial *Stalemate* study to include the administrations of George W. Bush, Obama, Trump, and the Biden administration (through 2022), partisan polarization remains consequential.²³ Declining moderation—controlling for party control, bicameral conflict, and the state of the federal budget—still generates more frequent bouts of deadlock.²⁴ Regardless of whether we view polarization as a function of ideological differences, strategic disagreement by partisans seeking electoral advantage, or a mix of the two, the results are clear: When ideological or electoral incentives yield intensely partisan behavior, lawmakers and the president struggle to find broadly palatable, bipartisan solutions to the range of problems they face (and that they can sell to partisans back home).²⁵ Counter to the expectations of the American Political Science Association's classic 1951 statement, *Towards a More Responsible Party System*, loyal, cohesive parties undermine rather than facilitate problem solving in Congress.

In contrast, the impact of party control on legislating over the longer period appears attenuated. True, legislative deadlock is seemingly more frequent on salient issues in periods of divided than unified control. Roughly half of salient measures ended in deadlock in divided governments between 1947 and 2022, compared to 43 percent of such measures during unified government. But once we control for the polarized nature of today's parties, that difference is barely significant. To be sure, unified Democratic control of government after the election of 2008—coupled with a short-lived filibuster-proof Senate majority of sixty Democratic senators—yielded major legislative dividends in 2009 and 2010: Congress and the president crafted the Affordable Care

Act, rewired the nation's financial sector in the Dodd–Frank Wall Street Reform and Consumer Protection Act (Dodd–Frank), advanced major arms control, and dumped the military's "Don't ask don't tell" policy, among other accomplishments. So too did unified Democratic control in 2021 and 2022, especially because Democrats twice packaged key priorities into a filibuster-proof budget process known as "reconciliation" to thwart GOP opposition. Even though both Republican and Democratic majorities under unified party control have benefited from reconciliation rules, impact of unified control over the longer postwar period is now harder to detect.

Why do unified governments seem to be losing their firepower? The recent, rising proclivity of opposition-party senators to insist on sixty votes to end debate on most amendments, measures, and procedural motions likely undermines the legislative power of majority parties in periods of unified party control.²⁶ For example, increased minority party exploitation of its parliamentary rights would help to explain the litany of legislative measures left in limbo after Senate Democrats lost their filibuster-proof majority in the winter of 2010, as well as the heavy load of measures left undone at the close of the Republican-led 108th (2003–2004) and 115th (2017–2018) Congresses. Rising polarization—as well as increased electoral competition²⁷—increases the incentives for the opposition party to insist on sixty votes—a threshold that is often out of reach given incentives for partisan team play in the Senate. The mantra "Your party is for it, so mine is against it" makes it especially hard to reach sixty, especially as Democratic and GOP majorities in the House and Senate have been shrinking over the past decade. Mayhew's focus on crosscurrents that run within each party might also help to explain why the effects of party control have diminished in recent years. Why such crosscurrents might be more pressing today than in past, however, remains to be explained.

I also find a dampened effect of bicameral differences on the prospects for lawmaking. That said, my measure of bicameral differences (which taps the level of discord when the chambers review decisions of House–Senate conference committees) is itself a victim of rising partisanship: Congress today very rarely goes to conference to resolve bicameral disagreements. In fact, there were zero conference reports at all during Biden's first two years in office (2021–2022). The sharp decline in conferencing partially reflects the overall decline in major lawmaking in Congress. But it also reflects the increased centralization of decision making in Congress: Leaders and staff are more likely to negotiate deals behind closed doors rather than the typically more open forum of a conference committee under the guidance of committee chairs. Avoiding conference also precludes the need to build a supermajority to defeat a filibuster of the motion to go to conference. Because the measure no longer offers a robust way to capture the degree of bicameral conflict, the analysis likely underestimates the impact of such disagreement on Congress's ability to solve problems. After all, we know that the two chambers have taken markedly different approaches to numerous salient issues in recent years, including climate change, immigration reform, Obamacare repeal, and electoral reforms.

Finally, some argue that perceptions of a dysfunctional Congress are out of sync with Congress's actual legislative record. As the chapter by Curry and Lee in this volume suggests, Congress often secures major compromise on issues that escape the media's spotlight—since issues with the most conflict tend to draw reporters' attention.²⁸ As the authors point out in new work with Robert Oldham, for example, news media practices and incentives lead reporters to disproportionately focus on conflict and stalemate, regardless of Congress's performance.²⁹ The mismatch between news coverage and reality means that scholars and others might misjudge periods of remarkable legislative accomplishments, especially when lawmakers bury them in omnibus, catch-all bills.³⁰ An alternative "Secret Congress" account goes a step further to point the causal arrow in the other direction: News coverage drives up conflict (and thus stalemate) rather than the other way around.³¹ If that were true, a lack of visibility would make bipartisan deals more likely; in contrast, more media scrutiny would drive up conflict, generate partisan incentives to disagree, and put bipartisan compromise out of reach. More likely, the arrow goes in the other direction: Conflict attracts media attention. After all, increased media on noncontroversial issues is unlikely to be sufficient to derail them. In fact, I find that on average gridlock on less salient issues tends to be higher than that on more salient issues over the long postwar period.

LESSONS FROM THE OBAMA YEARS

A dive into recent Congressional history—over the course of the Obama, Trump, and Biden presidencies—illuminates the broader dynamics of legislative stalemate sketched above. These mini-histories demonstrate the ways in which the diminished (but not exhausted) firepower of unified party control—alongside rising partisanship—have taken a toll on Congress's capacity to tackle major policy problems. Importantly, although presidents, lawmakers, crises, and even the legislative rules of the game vary significantly over these histories, a common dynamic underlies them all: Although legislating in a polarized era is challenging, the parties do often still find incentives to cooperate and make enduring deals. As the case studies also suggest, polarized parties can still face internal divisions, as we've seen in the contemporary Republican party. Such cleavages can further complicate the search for bipartisan policy solutions.

I start with the Obama presidency. Ironically perhaps, one of the most important developments in this period did not take place amongst the Democrats, who held supersized majorities in the House and Senate alongside a Democratic White House. Instead, a strategic choice spearheaded by Minority Leader Mitch McConnell (R-Ky.) made an indelible mark on the legislative process, especially in the Senate: Senator McConnell vowed to make Obama a one-term president. True, McConnell waited until the fall of 2010 to declare his party's goal. But his party's strategy colored all eight years of the Obama administration. As McConnell stated that fall,

We worked very hard to keep our fingerprints off of these proposals, because we thought—correctly, I think—that the only way the American people would know that a great debate was going on was if the measures were not bipartisan. When you hang the “bipartisan” tag on something, the perception is that differences have been worked out, and there’s broad agreement that that’s the way forward.³²

Journalist Ezra Klein summed up McConnell’s strategy well: “Bipartisanship isn’t a function of the ideas in a policy proposal; it’s a function of whether the minority party signs on to a policy proposal.”³³ And as Steven Smith has argued, McConnell’s strategy helped to remake the Senate into a far more intensely and pervasively partisan chamber.³⁴

Seeking to derail Obama’s proposals, House and Senate GOP leaders cajoled rank-and-file Republicans not to collaborate or negotiate with Democrats on most salient measures.³⁵ Working with Democrats would signal GOP acceptance of Obama’s initiatives, indeed his presidency. Must-pass measures—such as annual spending bills and the effort to raise the government’s legal borrowing limit—were no exception: GOP leaders stalled until the last minute, hoping brinkmanship would afford them leverage. Republican-aligned media (such as Fox News) and other organizations (such as Heritage Action, the activist arm of the conservative Heritage Foundation think tank) also pressed Republicans to resist Obama’s proposals, threatening lawmakers who cooperated with Democrats that they would support a primary challenge on their right flank.

McConnell’s strategy eventually paid off. First, GOP tactics limited the power of unified party control to deliver substantial policy gains to the party in power. During Obama’s first two years in office, Republicans largely refused to cooperate with the Democrats’ efforts to stimulate the economy in the wake of the worst financial crisis since the Great Depression of the 1930s, to rewire the nation’s financial regulatory system, and to revamp the nation’s health care system. Their strategy left Democrats to cobble mostly partisan coalitions for the most salient problems on the agenda—exposing them to charges of partisan maneuvering and overreach, even when Democrats adopted proposals that Republicans had previously championed. For example, Democrats based Obamacare largely on “RomneyCare,” the health care model adopted in Massachusetts by future 2012 Republican presidential nominee Mitt Romney. Similarly, in crafting Dodd–Frank, Democrats adopted key proposals from the GOP, including the proposal to require the Federal Reserve to dedicate a steady stream of funding to finance the new Consumer Financial Protection Bureau. Despite their genesis in GOP ideas, both programs were relentlessly attacked by Republicans after enactment—generating legislative efforts to repeal them and legal challenges to their constitutionality.

Second, McConnell’s strategy contributed to Democrats’ 2010 loss of the House and 2014 loss of the Senate. Taking advantage of an increasingly partisan electorate—one that can favor Republicans in off-year elections—Republicans recruited a cadre of

Tea Party–inspired and other political newcomers who successfully nationalized the midterm elections as referenda on Obama’s record. To be sure, fermenting Republican opposition among the electorate also put the party’s leadership in the grassroots’ cross-hairs. Speaker John Boehner (R-Ohio) and House Majority Leader Eric Cantor (R-Va.) both lost their jobs: Cantor lost his primary election in 2014, and Boehner resigned in face of a right-wing revolt inside his party conference in 2015. Still, the party’s opposition to Obama eventually empowered Republicans to take back control of both branches of government, ending a short-lived experiment in Democratic control of government.

Third, McConnell’s ploy enhanced GOP influence over the ideological makeup of the Supreme Court—even when their party was shut out of the White House. McConnell extended his tactic of resolute opposition to Obama by refusing to allow the Senate to consider Obama’s pick for the Supreme Court after the sudden death of conservative Associate Justice Antonin Scalia early in 2016. Most Republicans running for reelection in 2016—even those facing voters in states won by Obama in 2012—supported the GOP’s refusal to consider or vote on the nomination of U.S. Court of Appeals Judge Merrick Garland for the Supreme Court, even though Garland had previously received support from conservative Senate Republicans. Democrats highlighted Republicans’ brazen willingness to violate norms of advice and consent when they refused to even meet with Judge Garland. Although Republicans claimed that the Senate typically refrains from considering Supreme Court nominees during a presidential election year, neutral observers suggested their claims were historically inaccurate and constitutionally suspect.³⁶ McConnell’s actions raised the strong possibility that future Supreme Court vacancies might only be filled when the president’s party controls the Senate.

Still, McConnell’s strategy was not entirely cost-free, especially in the realm of advice and consent. Repeated GOP filibusters of executive and judicial branch nominees in 2013 convinced Democrats to curtail filibusters of any nominee save for the Supreme Court—in Senate parlance, known as “going nuclear.” The immediate spark was a set of Republican filibusters against three Obama nominees to the D.C. Court of Appeals in 2013. Some Republicans opposed the nominees on ideological grounds; others admitted that they sought to stop Obama from adding Democratic judges to a circuit evenly balanced with both parties’ appointees. More broadly, the battle reflected years of partisan frustration: Democrats added up GOP efforts to block Obama’s agenda and his picks for prime appointments and collectively lit the fuse. Democrats went nuclear through a series of procedural motions that created a new interpretation of Senate rules: Only fifty-one votes (rather than sixty) would now be required to cut off debate and bring a nomination to an up-or-down vote. McConnell deemed Majority Leader Harry Reid’s action a “power grab,” calling it “a sad day in the history of the Senate.”³⁷

By going nuclear in 2013, Senate Democrats empowered President Obama (and President Trump after him) to more swiftly and fully fill vacancies on the federal courts.

Before the Senate went nuclear at the end of 2013, roughly thirty nominees had been confirmed to the federal trial and appellate courts. One year later, the Senate had confirmed nearly one hundred nominees who had either been pending when Democrats went nuclear or were nominated afterwards. Over all, the Senate confirmed 90 percent of the president's judicial nominees in the 113th Congress—a success rate last achieved in the late 1980s. After Republicans took back control of the Senate in the elections of 2014, the GOP-led Senate ground advice and consent for Obama nominees to a near halt.

Finally, winning back control of the Senate in 2014 led McConnell to revise his playbook for the final two years of the Obama administration. With control of Congress in GOP hands and a wide-open race for the White House approaching in 2016, McConnell adopted a minimally more constructive legislative stance, telling his colleagues that the party needed accomplishments to run on in 2016. “I don’t want the American people to think that if they add a Republican president to a Republican Congress, that’s going to be a scary outcome. I want the American people to be comfortable with the fact that the Republican House and Senate is a responsible, right-of-center, governing majority,” McConnell noted late in 2014.³⁸

Toward that end, Republicans in 2015 came to the negotiating table to resolve long-stalemated problems in health, education, and the economy. Among other deal making, the two parties resolved the annual “doc fix” cliffhanger that required changes to Medicare reimbursement formulas, overhauled the long-expired No Child Left Behind education law, negotiated a two-year budget deal to prevent scheduled cuts in domestic and defense funding, and provided long-term funding for federal highway and mass transit programs. In each of these bipartisan bargains, both parties brought to the table their most preferred policies, often crafting “win-win” deals that combined the top priorities of both parties.³⁹ For example, to finally resolve the “doc fix” stalemate, lawmakers matched Republicans’ preference for Medicare cuts with Democrats’ desire to expand funding for community health programs. Both parties gained from coming to the negotiating table. Of course, McConnell encouraged resolution of these long-stalled proposals to ensure that Senate Republicans running for reelection in blue states in 2016 would have a record to run on—confirming as always the power of electoral prospects to condition governing strategies. Although the 2016 elections diminished GOP margins in both chambers, Republicans kept control of Congress and returned the White House to the GOP.

LESSONS FROM THE TRUMP YEARS

McConnell’s strategy might have aided the election of Donald Trump in 2016: Undermining Obama’s legislative record fueled public dissatisfaction with Washington and with Democrats’ capacity to solve public problems. In that sense, McConnell’s strategy succeeded: The return of unified GOP control for the first time since 2006 promised Republicans a straight course to achieve the GOP’s right-of-center agenda,

including cutting taxes, repealing Obamacare, and paring back government regulation of the economy. Assisted by Democrats' ban on filibustering most presidential nominations, Republicans stood poised at the outset of 2017 to reverse Obama's policy legacy. As the broader pattern documented above suggests, however, unified party control in recent years has not always made possible more robust legislative deal making. Internal Republican divisions—coupled with intense Democratic opposition—limited the nature and frequency of legislative compromises during the Trump presidency.

Trump's election threw a wrench in McConnell's expectation of a center-right governing majority. Granted, many of Trump's priorities overlapped with those of conservatives—including tax cuts, deregulation, repeal of Obamacare, and confirming conservative judges to the federal bench. But major components of Trump's electoral appeal were ideologically at odds with the views of "establishment" conservative lawmakers: protectionism over free trade, fiscal stimulus instead of austerity, saving rather than cutting entitlements, threatening in place of strengthening ties with international allies, and embracing instead of challenging Russian leader Vladimir Putin. After the November 2016 elections and into early 2017, tensions among GOP elites aired publicly as Trump assembled his administration, and some Republicans staked out positions that challenged his priorities.

The Republican Congress achieved a middling record before losing control of the House in the 2018 midterm elections. On popular issues with Democratic support, Congress and Trump made progress: lifting spending caps on both domestic and defense spending in a two-year budget deal, paring back of some Dodd–Frank financial regulations, increasing funding to address the opioid crisis, and imposing new sanctions on Russia and North Korea. Beyond those generally popular, bipartisan solutions, however, Republicans struggled to advance their agenda.⁴⁰ They even occasionally put up roadblocks to the president's agenda, opposing funding for the border wall, pushing the administration to end its family separation policy at the border, and hemming in the president's ability to remove troops from South Korea, among other limits.

In the face of extreme partisan differences and a slim Senate majority, Republicans discovered the limited firepower of unified party control in polarized times. On most other major issues, Republicans struggled to legislate. GOP difficulties encouraged Republicans to find ways to legislate without the need for Democratic votes. First, they cut parliamentary corners in ways that limited the blocking power of Senate Democrats, for instance lowering the threshold to a simple majority to cut off debate on Supreme Court nominations. Second, they exploited laws that banned filibusters, thereby allowing Republicans to move by majority vote. For example, Republicans deployed the Congressional Review Act (CRA) to reverse more than a dozen Obama-era rules by majority vote. Such action allowed Republicans to make a down payment on their vow to deregulate energy, financial, and other sectors. But given the limited applicability of the CRA, Republicans scarcely dented the Obama administration's broader regulatory gains. To be sure, agencies headed by Trump appointees

made dozens of moves to deregulate across the environmental, energy, banking, and other sectors, but litigation tied vast numbers of those efforts up in federal court. More broadly, Trump largely proved unable beyond landmark tax cuts to exploit his legislative majorities to secure more of his agenda.

Viewed more broadly, efforts to bend the rules can limit the policy reach of ambitious majorities. The most visible illustration occurred when Republicans avoided a Democratic filibuster by exploiting the Congressional Budget Act to attempt repeal of the Affordable Care Act (ACA). Tough limits on the use of the act's "reconciliation" rules complicated Republicans' pursuit of their agenda. Divisions within the GOP—coupled with parliamentary constraints known as the "Byrd Rule" embedded in the Budget Act—foiled the GOP push to repeal and replace the ACA.

Procedural rules also affected the breadth and durability of Republican tax cuts in 2017: Republicans gave permanent tax cuts to the wealthy and corporations while sun-setting reductions for the middle class. This decision undercut the political value of tax cuts on the campaign trail in the 2018 midterms. Unwilling to make the sorts of concessions necessary to secure any Democratic votes, Republicans engineered remarkably unpopular tax cuts. That said, slim majorities confirmed record numbers of conservative judges to the federal bench. With the Senate in GOP hands for all four years of Trump's term in office, Trump put 226 judges on the federal bench, constituting just under 30 percent of the federal judiciary at the end of 2020.⁴¹ Republicans also confirmed three conservative Supreme Court justices after McConnell led his Republican colleagues to ban Supreme Court filibusters—even racing to confirm Amy Comey Barrett to the late Justice Ruth Bader Ginsberg's seat just days before the 2020 elections.

Republicans on Capitol Hill do not shoulder all the blame for their stunted policy success. At the end of his second year in office, Trump proved an undisciplined and historically unpopular president. His weak approval generated leeway for Democratic and Republican lawmakers to resist his policy overtures. The problem was not strictly the president's poor command of policy detail. Equally (or perhaps more) problematic for Republicans: Lawmakers could not trust the president to stick to his policy pronouncements. Trump, for example, declared the House ACA repeal bill "mean"—even after celebrating House passage in 2017 in a Rose Garden event. Democrats targeted centrists who voted for the bill (as well as conservatives more broadly) during midterm campaigns for supporting an unpopular bill. (Some lost their 2018 races even after voting against the bill.) Similar scenarios played out when the president vowed to curtail gun ownership after the mass school shooting in Parkland, Florida, and protect Deferred Action for Childhood Arrivals (DACA) "Dreamers." After televised statements, Trump quickly retreated and blamed Democrats for the ensuing stalemate. Given disagreements within the Republican party—even in a period of polarization and intense partisanship—Trump's inability to pave the way forward on contested policy squandered any further policy gains for the Republican Congress.

Democrats' capture of the House in the 2018 midterm elections ushered in split party control of Congress. On cue, the splintered branches and Congress stalemated over funding the government, precipitating a record-long government shutdown that began in December 2018 and lasted well into January after Democrats took up House gavels. Remarkably, Trump took credit for the shutdown, thinking that closing the government to force Congress to better fund his campaign-promised border wall. Ultimately, Trump backed down and the government opened without a congressional commitment to fund the wall. But frustrated by bipartisan resistance in both chambers, Trump secured billions for his border wall by invoking the National Emergencies Act—allowing the administration to divert previously appropriated funds for military construction projects (though total funding for the border wall fell far short of Trump's campaign demands). As lawmakers and the public discovered, supermajorities in both chambers are necessary to protect Congress's core power of the purse.

Apart from a bipartisan budget deal that burst spending caps on both domestic and defense spending in the summer of 2019, Congress and the president failed to agree on most other issues. One exception was passage of the United States–Mexico–Canada trade deal, a top priority of the Trump administration. House Democrats insisted on significant amendments, and GOP lawmaker and the White House eventually folded to their demands. Otherwise, the more common pattern consisted of the Democratic House—but not the GOP-Senate—passing major bills, such as to lower prescription drug prices, reform the nation's electoral laws, and address climate change. At the end of Trump's term, such measures had piled up on the Senate's doorstep with little chance of enactment.

More dramatically, Congress and the president focused their attention at the end of 2019 and early 2020 on Democrats' effort to impeach the president. After the Republican-led Senate acquitted President Trump, the president embarked on a retribution tour, ordering the firing of impeachment witnesses who testified against him and all but interfering in several highly salient federal criminal prosecutions of both perceived friends and enemies. In the immediate wake of impeachment in early 2020, few expected the president to engage in any significant legislative efforts in the run up to the 2020 presidential election. The contrast to the aftermath of Bill Clinton's impeachment is instructive, though limited. Clinton explicitly apologized to the public for the transgressions that provoked his impeachment by the GOP-led House. But his impeachment took place in an entirely different electoral context: The country was two years out from the next election, and the Constitution precluded Clinton from running again. Of course, both the Clinton and Trump impeachments took place in a period of historically high gridlock in the postwar era—so few expected that either president would end his term after impeachment with any remarkable legislative achievements. Of course, the global pandemic in early spring of 2020 upended everyone's expectations for how the 2020 presidential election year would unfold. Nor did many anticipate that Trump would instigate a violent insurrection at the Capitol aimed at disrupting the Electoral College vote count on January 6, 2021—or the

second House impeachment of Trump that quickly ensued. Few were likely surprised by loyal Senate Republicans' refusal to convict Trump at trial after Biden took office later that month.

LESSONS FROM THE BIDEN YEARS

As the 2024 elections approach, the nation faces yet another pivotal, highly competitive election season. Slim Democratic and Republican majorities hold the Senate and House, respectively, and the race between Vice President Kamala Harris and former President Trump is all but tied. Knife-edge, nationalized elections make control of Congress a toss-up, and only a handful of swing states will determine the outcome of the presidential election. Partisan team play remains pervasive in both chambers, but the gulf between the parties belies a deep cleavage within the Republican party—especially in the House. Although very few of Trump's GOP opponents remain in Congress, a hard-right faction roils the House Republican Conference. To wit, the 118th (2023–2024) was the first Congress ever to depose its Speaker—a historic event followed by three weeks of GOP indecision over who could command the votes to replace deposed Speaker Kevin McCarthy (R-Calif.).

The partisan context sets the stage for probing the dynamics of gridlock during the Biden administration. Notably, despite core differences between Trump's and Biden's presidencies, both faced a similar partisan configuration: two years of unified party control, followed by two years of a split party Congress. During their first two years in office, both presidents' congressional majorities relied on parliamentary shortcuts to advance their agendas without any votes from the opposition. Specifically, both presidents' majorities stretched the rules of budget reconciliation to squeeze their top priorities within the confines of federal budget law. As noted earlier, Republicans under Trump exploited the budget process—originally created to reduce federal deficits—to enact tax cuts that experts claim cost the government about \$2 trillion in revenue. Their success came, of course, on the heels of their failed effort to repeal and replace the Affordable Care Act via reconciliation.

Democrats under Biden stretched reconciliation rules twice. First, Democrats deployed reconciliation to pass the American Relief Plan—extending \$1.9 trillion in economic aid to individuals, states, cities, small businesses, and low-income families and children hit by the pandemic. Like Republicans under Trump, Democrats could not have achieved that early down payment on their agenda without filibuster-proof budget rules. Second, Biden and the Democrats, after a near-death legislative experience for the bill in 2022, exploited reconciliation to enact the Inflation Reduction Act. The measure directed nearly \$800 billion in subsidies to encourage business and consumer efforts to adopt clean energy alternatives, invested in renewable energy infrastructure, and lowered insulin prices for Medicare recipients, among other provisions. The Democrats-only deal advanced numerous of Biden's campaign pledges, even as

disagreement over policies and costs derailed Democrats' efforts to shore up the social welfare net.

Just as in previous Congresses, lawmakers also reached several landmark bipartisan agreements. This contributed to producing the least gridlocked Congress since Obama's first two years in office. Notably, the Senate was evenly divided between the parties during Biden's first two years, arguably making it much harder to secure the necessary sixty votes for major agreements. On some issues, both parties felt compelled to go the bargaining table—often pulled by party leaders eager to get their party on the popular side of an issue and to avoid blame for derailing success. For Biden's first two years, a prime example was a bipartisan infrastructure bill—a plan that provided \$1 trillion over five years to fix the nation's crumbling roads and bridges, expand access to broadband (especially in rural America), and invest in clean energy, transit, and other public works. Remarkably—despite Trump's opposition—thirteen GOP senators and thirteen GOP House members joined every Democrat to propel the bill to passage, acknowledging broad popular support for the bill.

Still, House Democratic leaders under Speaker Nancy Pelosi (D-Calif.) had to overcome party caucus fractures to get the measure over the finish line.⁴² Progressives had taken the bill hostage for Senate passage of Biden's Build Back Better plan. Democratic leaders, perhaps spooked by their party's losses in the 2021 November special elections, eventually cajoled progressives to vote for the infrastructure bill. Seeking to avoid blame for blocking a popular issue, both parties went to the negotiating table and made a deal. Major lawmaking, the 117th Congress reminds us, is still possible in partisan times.

Split party control of Congress after Republicans won back control of the House in the 2022 elections proved tougher terrain for Biden and the Democrats. True, few expected much legislative motion beyond "must-pass" measures to fund the government, authorize Pentagon programs, and raise the debt ceiling. Add in a highly contested major foreign aid package for Ukraine, Israel, Taiwan, and Gaza, those were the top accomplishments of the 118th Congress in the run-up to the November elections. Cleavages within the House GOP conference undermined their party's ability to lead the House. One cleavage divided pragmatic and Trump-devoted "MAGA" Republicans; the other pitted a hard-right faction against party leaders. With a historically slim majority, the divisions led lawmakers to overthrow the Speaker, crippled GOP leaders' ability to set the agenda, and propelled what many term a "coalition government" that required Democratic votes to advance must-pass measures.⁴³ Such GOP friction also almost derailed the bipartisan foreign aid deal that initially included a tough package of immigration reforms demanded by conservative Republicans. Trump (not so quietly waiting in the wings in early 2024) initially convinced House Republicans to block that bipartisan Senate foreign aid deal. Intense domestic and international pressures on the new Republican Speaker eventually vaulted the aid measure through the House (without the restrictive immigration provisions) and eventually to the president's desk. Even when a bipartisan group of senators successfully

negotiated major reforms to the nation's immigration laws, Trump again intervened—this time convincing GOP senators to tank the deal. True, such an outsized role of a former president made the specifics of these episodes unusual. But the broader challenge of legislating during a period of split party control should feel familiar. Bicameral conflict when polarized parties divide control of Congress and the branches can undermine partisans' incentives to forge durable bipartisan deals.

CONCLUSION

The ship of state in postwar American national politics does not turn easily. Bipartisan agreement is typically both necessary to overcome innumerable veto points in our constitutional system and tough to build, especially in today's era of polarized and competitive political parties. For sure, policy change can occur despite Congressional inaction in the form of "policy drift": Blocking a change in the minimum wage, for example, undermines the value of the wage since existing law does not index the benefit for inflation.⁴⁴ More broadly, the alignment of partisan and institutional interests necessary to overcome barriers to change complicates efforts to resolve even widely recognized problems, from housing affordability to the high cost of health insurance.⁴⁵ And even past successful efforts to address public problems can suffer from deferred maintenance: "Existing policies require upkeep and maintenance if they are to continue to function well."⁴⁶ The nation's struggle to first contain and then mitigate COVID-19 during the pandemic starkly illustrated the price of underinvesting in governmental capacity and emergency preparedness.

The broader conditions that challenge Congress predate recent presidencies. Intense partisanship—even when the parties disagree internally over key issues—diminishes Congress's legislative capacity. Half-measures, second bests, and just-in-time legislating—or no action at all—are often the norm. Unified party control retains some punch, but with diminished firepower as Congress has polarized into competing partisan teams. Perhaps, as Mayhew suggests, partisan thrusts have always been challenged by cross-cutting currents. But alongside the rise in polarized and competitive parties over the past quarter-century comes more assertive action by opposition parties often intent on depriving the other party of policy victories. That dynamic no doubt underlies the steady rise in legislative deadlock over the postwar era. Coupled with rifts within each party, these legislative difficulties have been costly—both to the long-term fiscal health of the country and to citizens' trust in government.

What would it take to break the trajectory of deadlock? Some advocate electoral reforms to break up the two-party monopoly on representation in Congress or to reduce the influence of parties in drawing congressional district lines. Others suggest enlarging the House might weaken the influence of party leaders on the legislative process. More narrowly, changes to parliamentary rules to reallocate influence within each

chamber could make a difference, such as amending Senate rules to make it easier for simple majorities to secure votes on their agenda. But today's requirement to secure supermajorities in the Senate often hides divisions within the majority party that would be exposed if senators did away with the legislative filibuster.

Absent procedural changes, an election that hands control of Congress and the White House to a supersized majority is likely on its own to generate momentum for policy change—although larger parties also tend to be more diverse and divided. In a narrowly divided partisan nation with few swing voters and even fewer battleground states, such electoral shocks are rare. Shy of immediate crises that drive both parties to the bargaining table—lest the public and their own partisans blame them for inaction—a more nimble and cooperative Congress on the bigger issues of the day will be hard to secure. And even if partisans' political incentives compel them to negotiate more often, regenerating public trust in Congress and its capacity to solve tough problems remains a hard task for the future.

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then averaged both chambers' moderation to create a single moderation score for each Congress. I define "moderate" as a legislator whose first dimension DW-NOMINATE ideological score places him or her closer to the ideological median of the chamber than to their own party's median. Dividing by party distance helps to distinguish Congresses both by the size and relative location of the political center. For instance, a Congress with a small political center coupled with ideologically proximate parties would score stronger on the "moderation" scale than a Congress with a small political center but ideologically distant parties. Because of changes in the availability of DW-NOMINATE scores after 2014, I use DW-NOMINATE for the 80th–113th Congress (1947–2014) and Common Space NOMINATE scores for subsequent Congresses. The correlation of Common Space and DW-NOMINATE scores is quite high, although the two measures make different theoretical assumptions about the stability of lawmaker voting scores

over time. Overall, the correlation of my measure of moderation (which falls with a rise in polarization) and a simple polarization score (distance between the party medians only using Common Space scores) is $-.9$.

22. To capture the policy distance between the two chambers, I identified all conference reports considered by both the House and Senate in each Congress and determined the percentage of each chamber that voted in support of each report. To measure bicameral policy distance, I calculated the difference in chamber support for each report and generated a mean disagreement score for each Congress. The measure varied from a low of just 2 percent in the early 1950s to a high of over 10 percent in the mid-1990s.
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38. As cited in Paul Kane, “New Senate Majority Leader’s Main Goal for GOP: Don’t Be Scary,” *Washington Post*, January 4, 2015. https://www.washingtonpost.com/politics/new-senate-majority-leaders-main-goal-for-gop-dont-be-scary/2015/01/04/80d27196-9074-11e4-a900-9960214d4cd7_story.html?utm_term=.bf4839e56570.
39. See Sarah Binder and Frances E. Lee, “Making Deals in Congress,” in *Solutions to Political Polarization in America*, ed. Nathaniel Persily (New York: Cambridge University Press, 2015).
40. See James M. Curry and Frances E. Lee, “Non-Party Government: Bipartisan Lawmaking and Party Power in Congress,” *Perspectives on Politics* 17 (2019): 47–65.
41. John Gramlich, “How Trump Compares With Other Recent Presidents in Appointing Federal Judges,” *Pew Research Center*, <https://www.pewresearch.org/short-reads/2021/01/13/how-trump-compares-with-other-recent-presidents-in-appointing-federal-judges/>.
42. For an analysis of Speaker Pelosi’s handling of House Democratic factions that Congress, see Joshua Huder, “Speaker Nancy Pelosi: A Master of the House,” *The Forum* 21 (2023): 141–61. <https://doi.org/10.1515/for-2023-2012>.
43. Lyndsay Wise, Anthony DeBarros, Siobhan Hughes, and Kara Dapena, “Why Mike Johnson Can’t Run the House Without Democrats’ Help,” *Wall Street Journal*, March 24, 2024. <https://www.wsj.com/politics/why-mike-johnson-cant-run-the-house-without-democrats-help-a9f5dd23>.
44. Eric M. Patashnik, “Paul Pierson’s Dis-mantling the Welfare

- State: A Twentieth Anniversary Reassessment: Introduction," *P.S. Political Science & Politics* 48 (2015): 267–69.
45. To be sure, the parties do not always agree on whether an issue is a problem. See David R. Mayhew, "Congress as Problem Solver," in *Promoting the General Welfare*, ed. Alan S. Gerber and Eric M. Patashnik (Washington, DC: Brookings Institution Press), 2006.
 46. Suzanne Mettler, "The Polyscape and the Challenges of Contemporary Politics to Policy Maintenance," *Perspectives on Politics* 14 (2016): 369.
- ## CHAPTER 9
1. This chapter extends portions of the analysis initially presented in C. Lawrence Evans, "Senate Countermajoritarianism," *American Political Science Review*, forthcoming. The title borrows from the final chapter of Frances E. Lee and Bruce I. Oppenheimer, *Sizing Up the Senate: The Unequal Consequences of Equal Representation* (Chicago: University of Chicago Press, 1999).
 2. For an analysis of public evaluations of Congress over time, see David R. Jones and Monika L. McDermott, *Americans, Congress, and Democratic Responsiveness: Public Evaluations of Congress and Electoral Consequences* (Ann Arbor: University of Michigan Press, 2009). Also consult John R. Hibbing and Elizabeth Theiss-Morse, *Congress and Public Enemy: Public Attitudes Toward American Political Institutions* (New York: Cambridge University Press, 1995).
 3. The Senate may be the most malapportioned legislature in the world, diverging sharply from the principle of "one person, one vote" stipulated for other American legislatures via landmark Supreme Court decisions like *Baker v. Carr*, *Wesberry v. Sanders*, and *Reynolds v. Simms*. For an overview, see Stephen Ansolabehere and James M. Snyder Jr., *The End of Inequality: One Person, One Vote and the Transformation of American Politics* (New York: Norton, 2008).
 4. Barbara Sinclair, *Party Wars: Polarization and the Politics of National Policy Making* (Norman: University of Oklahoma Press, 2006); Steven S. Smith, *The Senate Syndrome: The Evolution of Procedural Warfare in the Modern U.S. Senate* (Norman: University of Oklahoma Press, 2014).
 5. For example, consult Steven Levitsky and Daniel Ziblatt, *Tyranny of the Minority* (New York: Crown, 2023). Also see Lee Drutman, "The Crisis of Senate Legitimacy," in *Disruption, the Senate During the Trump Era*, ed. S. Theriault (New York: Oxford University Press, 2024), 199–220; Adam Jentleson, *Kill Switch: The Rise of the Modern Senate and the Crippling of American Democracy* (New York: Norton, 2021).
 6. David R. Mayhew, *Divided We Govern: Party Control, Lawmaking, and Investigations, 1946–2002*, 2nd ed. (New Haven, CT: Yale University Press, 2005). See also James M. Curry and Frances E. Lee, *The Limits of Party: Congress and Lawmaking in a Polarized Era* (Chicago: University of Chicago Press, 2020).
 7. A few words are called for about my use of terms like "democratic" and "undemocratic" as they apply to the Senate. The descriptive and normative literatures about democratic